

COMMERCIAL PROPERTY PURCHASE AND SALE AGREEMENT WITH ANCILLARY PROVISIONS, SCHEDULES, AND DISCLOSURES

Document Reference:	CPSA-2024-0047-MH
Date of Execution:	14th day of February, 2024
Jurisdiction:	State of Maharashtra, India
Governing Law:	Transfer of Property Act, 1882; Registration Act, 1908
Sub-Registrar Office:	Sub-Registrar, Andheri (West), Mumbai

PARTIES TO THIS AGREEMENT

SELLER

M/s. Horizon Realty Ventures Private Limited, a company incorporated under the Companies Act, 2013, having its registered office at 14-B, Nariman Point, Mumbai – 400 021, Maharashtra, India, bearing Corporate Identification Number (CIN): U70100MH2009PTC192847, represented herein by its duly authorised Director, Mr. Rajesh Kumar Mehta, son of Mr. Suresh Chandra Mehta, aged 54 years, residing at Flat No. 12A, Sea View Apartments, Worli Sea Face, Mumbai – 400 018 (hereinafter referred to as the '**Seller**', which expression shall, unless repugnant to the context, mean and include its successors-in-interest, legal heirs, executors, administrators, and permitted assigns).

PURCHASER

Mr. Arjun Pradeep Nair, son of Mr. Pradeep Govindan Nair, aged 41 years, Indian National, holding Aadhaar Card bearing number XXXX-XXXX-4821, PAN Card bearing number ARNPN7823K, presently residing at 302, Palm Grove Residency, Linking Road, Bandra (West), Mumbai – 400 050, Maharashtra, India (hereinafter referred to as the '**Purchaser**', which expression shall, unless repugnant to the context, mean and include his heirs, executors, administrators, legal representatives, and permitted assigns).

The Seller and the Purchaser are hereinafter individually referred to as a 'Party' and collectively as the 'Parties'.

RECITALS

A. The Seller is the absolute owner of the commercial property more particularly described in Schedule I appended hereto (hereinafter referred to as the 'Said Property'), and holds valid and marketable title thereto, free from all encumbrances, liens, charges, mortgages, attachments, and third-party claims of any nature whatsoever.

B. The Said Property was originally acquired by the Seller vide Registered Sale Deed dated 22nd March 2011, registered with the Sub-Registrar, Andheri (West), bearing Document No. 4471/2011, Book No. I, Volume No. 3847, at pages 12 to 38.

C. The Said Property is a commercial office unit situated on the 7th floor of 'Pinnacle Business Park', Plot No. C-22, MIDC Industrial Area, Andheri (East), Mumbai – 400 093, admeasuring approximately 2,840 square feet of carpet area and 3,512 square feet of built-up area (super built-up area: 4,124 square feet), as more particularly delineated in the floor plan annexed hereto as Annexure A.

D. The Purchaser, having inspected the Said Property and being satisfied with the physical condition, title, legal status, and all other aspects thereof, has expressed his desire to purchase the Said Property from the Seller on the terms and conditions set out herein.

E. The Seller, being desirous of selling the Said Property, has agreed to sell, convey, and transfer the Said Property to the Purchaser on the terms and conditions hereinafter appearing.

F. The Parties have agreed to reduce the terms and conditions of this Agreement into writing for the purpose of record and for compliance with applicable laws.

NOW, THEREFORE, in consideration of the mutual covenants, representations, warranties, and agreements contained herein, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties agree as follows:

ARTICLE I — DEFINITIONS AND INTERPRETATION

1.1 Definitions

In this Agreement, unless the context otherwise requires, the following terms shall have the meanings ascribed to them below:

'Agreement' — means this Commercial Property Purchase and Sale Agreement, including all Schedules, Annexures, and Addenda attached hereto or incorporated by reference herein, as may be amended from time to time in accordance with the provisions hereof.

'Completion Date' — means the date falling on or before 90 (ninety) calendar days from the date of execution of this Agreement, or such other date as may be mutually agreed upon by the Parties in writing, by which date the conveyance of the Said Property shall be completed.

'Consideration' — means the total sale consideration of Rs. 3,85,00,000/- (Rupees Three Crores Eighty-Five Lakhs only) payable by the Purchaser to the Seller for the purchase of the Said Property, as set out in Article II of this Agreement.

'Encumbrance' — means any mortgage, charge, lien, pledge, hypothecation, assignment, attachment, caveat, injunction order, lis pendens, statutory notice, pending litigation, tenancy, lease, licence, easement, right of way, or other third-party interest or claim of any kind affecting the Said Property or any part thereof.

'Good Title' — means a clear, marketable, and unencumbered title to the Said Property, free from all Encumbrances, capable of being transferred in accordance with applicable law.

'Possession Date' — means the date on which physical and vacant possession of the Said Property is handed over by the Seller to the Purchaser upon payment of the full Consideration and registration of the Conveyance Deed.

'Stamp Duty' — means the stamp duty payable on the Conveyance Deed under the Maharashtra Stamp Act, 1958, as applicable on the date of registration.

1.2 Interpretation

1.2.1 References to any statute or statutory provision include references to that statute or provision as amended, re-enacted, or replaced from time to time.

1.2.2 Words importing the singular include the plural and vice versa; words importing any gender include every gender.

1.2.3 References to 'days' mean calendar days unless otherwise specified. Where any period ends on a public holiday, the period shall be extended to the next working day.

1.2.4 The headings in this Agreement are for convenience only and shall not affect the interpretation of any provision.

1.2.5 References to 'writing' include email communications where expressly permitted under this Agreement.

ARTICLE II — SALE CONSIDERATION AND PAYMENT SCHEDULE

2.1 Total Consideration

The total sale consideration for the Said Property is agreed at **Rs. 3,85,00,000/- (Rupees Three Crores Eighty-Five Lakhs only)**, payable by the Purchaser to the Seller in the manner and within the timelines set forth in Clause 2.2 below.

2.2 Payment Schedule

Instalment	Amount (Rs.)	Due Date	Mode of Payment	Remarks
Token Amount (already paid)	5,00,000/-	14-Feb-2024 (paid)	RTGS/NEFT	Receipt No. HRV/2024/001 dated 14.02.2024
1st Instalment	50,00,000/-	Within 15 days of execution	RTGS/NEFT/ Demand Draft	On execution of this Agreement
2nd Instalment	1,00,00,000/-	Within 45 days of execution	RTGS/NEFT/ Demand Draft	On receipt of NOC from Society
3rd Instalment	1,00,00,000/-	Within 75 days of execution	RTGS/NEFT/ Demand Draft	On clear title certificate
Final Instalment (Balance)	1,30,00,000/-	On or before Completion Date	RTGS/NEFT/ Pay Order	Against delivery of possession & keys
TOTAL	3,85,00,000/-			

2.3 Payment Conditions

2.3.1 All payments shall be made by way of RTGS / NEFT transfer to the Seller's designated bank account details of which are set out in Schedule III, or by way of account payee Demand Draft / Pay Order drawn in favour of 'Horizon Realty Ventures Private Limited'. No cash payments shall be accepted.

2.3.2 Time is of the essence with respect to all payment obligations under this Agreement. In the event of delay beyond 7 (seven) calendar days from any due date, the Purchaser shall be liable to pay interest at the rate of 18% (eighteen percent) per annum on the delayed amount, calculated on a daily basis.

2.3.3 All payments made by the Purchaser hereunder shall be duly acknowledged by the Seller by issuance of signed receipts within 3 (three) working days of receipt of cleared funds.

2.3.4 The Purchaser shall bear and pay all costs associated with RTGS / NEFT transfers, bank charges, and other transaction costs.

ARTICLE III — TITLE, ENCUMBRANCES, AND DUE DILIGENCE

3.1 Title Warranty

The Seller hereby represents, warrants, and covenants that:

3.1.1 The Seller is the absolute, sole, and exclusive owner of the Said Property and has full right, power, authority, and capacity to enter into this Agreement and to sell, transfer, and convey the Said Property to the Purchaser.

3.1.2 The Said Property is free and clear of all Encumbrances, disputes, litigation, arbitration proceedings, government acquisition notices, slum rehabilitation authority notices, or any other adverse claims.

3.1.3 No part of the Said Property has been sold, gifted, mortgaged, charged, or otherwise transferred to any third party, and no agreement to do so exists.

3.1.4 There are no arrears of property taxes, water charges, electricity dues, society maintenance charges, service charges, or any other statutory dues outstanding against the Said Property as on the date of this Agreement.

3.1.5 The Said Property is not the subject matter of any lis pendens, attachment order, prohibitory order, injunction, or court decree.

3.1.6 The Said Property has been constructed in accordance with the sanctioned building plan approved by the Brihanmumbai Municipal Corporation (BMC) vide Approval No.

BMC/BP/AE/2006/4821 dated 15 July 2006, and all required Occupation Certificates have been duly obtained.

3.2 Title Investigation and Due Diligence

The Purchaser shall be entitled, at his own cost and expense, to conduct such title investigation, legal due diligence, structural inspection, and other inquiries as he may deem fit within a period of 30 (thirty) days from the date of execution of this Agreement (the 'Due Diligence Period'). The Seller shall extend full cooperation and provide access to all relevant documents, records, registers, and the Said Property during the Due Diligence Period.

3.3 Title Documents

The Seller shall provide the following documents to the Purchaser within 10 (ten) days of execution of this Agreement:

- (1) Original title deed / registered sale deed by which the Seller acquired the Said Property
- (2) Certified copies of all prior title deeds forming the chain of title for a minimum period of 30 years
- (3) Encumbrance Certificate for the Said Property for the last 30 years from the Sub-Registrar's office
- (4) Latest property tax paid receipt from the Brihanmumbai Municipal Corporation
- (5) No Objection Certificate (NOC) from the Co-operative Housing Society / Association of Apartment Owners

- (6) Occupation Certificate / Completion Certificate issued by BMC
- (7) Approved building plan showing the Said Property
- (8) Latest share certificate(s) issued by the Society (if applicable)
- (9) Statement of accounts showing nil dues towards maintenance, sinking fund, and other charges
- (10) Copy of the sanctioned layout plan and Floor Space Index (FSI) calculations

ARTICLE IV — CONDITIONS PRECEDENT

4.1 Conditions Precedent to Completion

The obligation of the Purchaser to complete the purchase of the Said Property shall be subject to the fulfilment of the following conditions precedent on or before the Completion Date:

- 4.1.1 The Seller shall have furnished clear and marketable title to the Said Property, free from all Encumbrances, to the reasonable satisfaction of the Purchaser's advocate.
- 4.1.2 The Seller shall have obtained a valid and subsisting No Objection Certificate from the Co-operative Housing Society permitting the transfer of the Said Property to the Purchaser.
- 4.1.3 All representations and warranties of the Seller set forth in this Agreement shall be true and accurate in all material respects as of the Completion Date.
- 4.1.4 No material adverse change shall have occurred in the physical condition, legal status, or title of the Said Property between the date of this Agreement and the Completion Date.
- 4.1.5 The Seller shall have cleared all outstanding dues, charges, and liabilities in respect of the Said Property, including but not limited to property taxes, water charges, electricity dues, society charges, and maintenance arrears.
- 4.1.6 The Seller shall have obtained all necessary approvals, permissions, and consents required under applicable law for the valid transfer of the Said Property.

4.2 Waiver of Conditions

Any or all of the conditions precedent set out in Clause 4.1 above may be waived, in whole or in part, by the Purchaser in writing at any time prior to the Completion Date, provided that such waiver shall not prejudice any claim which the Purchaser may have in respect of any breach of the Seller's representations and warranties.

ARTICLE V — POSSESSION, HANDOVER, AND COMPLETION

5.1 Handover of Possession

The Seller shall hand over vacant, peaceful, and undisputed physical possession of the Said Property to the Purchaser simultaneously upon registration of the Conveyance Deed and receipt of the final instalment of the Consideration as specified in Clause 2.2 above. Possession shall be accompanied by delivery of all original title documents, keys, access cards, parking stickers, and all other accessories, fittings, and fixtures forming part of the Said Property.

5.2 Condition of Property at Handover

The Said Property shall be delivered to the Purchaser in the same condition as inspected on the date of this Agreement, fair wear and tear excepted. The Seller shall not, without prior written consent of the Purchaser, carry out any structural modifications, remove any permanent fixtures, fittings, or installations, or permit any damage to the Said Property between the date of this Agreement and the Possession Date.

5.3 Conveyance Deed

Upon fulfilment of all conditions precedent and payment of the full Consideration, the Parties shall execute a registered Conveyance Deed (Sale Deed) in respect of the Said Property before the Sub-Registrar of Assurances, Andheri (West), Mumbai. The draft Conveyance Deed shall be prepared by the Purchaser's advocate and approved by the Seller's advocate not less than 15 (fifteen) days prior to the Completion Date.

5.4 Costs and Expenses

5.4.1 Stamp Duty: The Purchaser shall bear and pay all stamp duty payable on the Conveyance Deed under the Maharashtra Stamp Act, 1958.

5.4.2 Registration Charges: The Purchaser shall bear and pay all registration charges payable under the Registration Act, 1908.

5.4.3 Advocate Fees: Each Party shall bear its own legal costs and advocate fees in connection with this transaction.

5.4.4 Society Transfer Charges: The Purchaser shall bear all society transfer fees, premium charges, and any other charges levied by the Co-operative Housing Society in connection with the transfer of membership.

5.4.5 GST: Goods and Services Tax, if applicable on this transaction, shall be borne by the Purchaser.

ARTICLE VI — DEFAULT, REMEDIES, AND TERMINATION

6.1 Default by Purchaser

In the event the Purchaser fails to make any payment on the due date, or fails to execute the Conveyance Deed on the Completion Date, for reasons attributable solely to the Purchaser, and such default is not cured within 15 (fifteen) days of written notice from the Seller:

6.1.1 The Seller shall be entitled to terminate this Agreement by written notice to the Purchaser.

6.1.2 Upon such termination, the Seller shall be entitled to forfeit the Token Amount of Rs. 5,00,000/- (Rupees Five Lakhs only) as agreed liquidated damages and not as a penalty.

6.1.3 All other amounts paid by the Purchaser shall be refunded by the Seller within 30 (thirty) days of termination, without interest.

6.1.4 The Seller shall be free to sell, transfer, or otherwise deal with the Said Property to any third party without any further obligation to the Purchaser.

6.2 Default by Seller

In the event the Seller fails or refuses to perform its obligations under this Agreement, including failure to deliver Good Title, failure to hand over possession, or failure to execute the Conveyance Deed on the Completion Date, for reasons attributable solely to the Seller:

6.2.1 The Purchaser shall be entitled to seek specific performance of this Agreement before the competent court of jurisdiction.

6.2.2 Alternatively, the Purchaser shall be entitled to terminate this Agreement and claim refund of all amounts paid, together with interest at the rate of 18% per annum from the respective dates of payment.

6.2.3 In addition to the above, the Seller shall be liable to pay damages of Rs. 10,00,000/- (Rupees Ten Lakhs only) as agreed liquidated damages for breach.

ARTICLE VII — REPRESENTATIONS AND WARRANTIES

7.1 Representations and Warranties of the Seller

7.1.1 The Seller has full legal capacity, right, and authority to enter into, execute, and perform this Agreement.

7.1.2 This Agreement constitutes legal, valid, and binding obligations of the Seller, enforceable against it in accordance with its terms.

7.1.3 The execution and performance of this Agreement does not violate any applicable law, regulation, court order, or contractual obligation binding on the Seller.

7.1.4 There is no pending or threatened litigation, arbitration, government investigation, or regulatory proceeding involving the Said Property or the Seller that could adversely affect this transaction.

7.1.5 The Said Property is not subject to any rent control proceedings, tenancy disputes, or occupation by any tenant, licensee, or trespasser.

7.1.6 All taxes, duties, levies, and assessments payable in respect of the Said Property have been duly paid and no demands are outstanding.

7.1.7 The Said Property has valid and subsisting connection for electricity, water supply, and drainage, and all utilities are functional.

7.2 Representations and Warranties of the Purchaser

7.2.1 The Purchaser has full legal capacity, right, and authority to enter into, execute, and perform this Agreement.

7.2.2 The funds used by the Purchaser for the purchase of the Said Property are from legitimate and legally compliant sources and are in full compliance with applicable anti-money laundering laws and regulations.

7.2.3 The Purchaser has conducted or waives the right to conduct independent due diligence in respect of the Said Property and is satisfied with the physical and legal condition thereof.

ARTICLE VIII — INDEMNIFICATION

8.1 The Seller shall indemnify, defend, and hold harmless the Purchaser and his successors and assigns from and against any and all losses, claims, damages, liabilities, costs, and expenses (including reasonable advocate fees) arising out of or resulting from: (a) any breach of the Seller's representations, warranties, or covenants under this Agreement; (b) any Encumbrance, defect in title, or third-party claim in respect of the Said Property relating to the period prior to the Possession Date; (c) any undisclosed dues, liabilities, or obligations in respect of the Said Property.

8.2 The Purchaser shall indemnify, defend, and hold harmless the Seller from and against any and all losses, claims, damages, liabilities, costs, and expenses arising out of or resulting from: (a) any breach of the Purchaser's representations, warranties, or covenants under this Agreement; (b) any act or omission of the Purchaser or his agents in connection with the Said Property after the Possession Date.

ARTICLE IX — DISPUTE RESOLUTION

9.1 Amicable Resolution

In the event of any dispute, difference, controversy, or claim arising out of or in connection with this Agreement, including any question regarding its existence, validity, interpretation, performance, or termination (a 'Dispute'), the Parties shall first attempt to resolve such Dispute amicably through good-faith negotiations within a period of 30 (thirty) days of a written notice by one Party to the other identifying the Dispute (the 'Negotiation Period').

9.2 Arbitration

If the Dispute is not resolved within the Negotiation Period, either Party may refer the Dispute to arbitration in accordance with the Arbitration and Conciliation Act, 1996, as amended. The arbitration shall be conducted by a sole arbitrator mutually appointed by the Parties. In the event the Parties fail to agree on the appointment of the arbitrator within 15 (fifteen) days, either Party may approach the High Court of Bombay for appointment of an arbitrator. The seat and venue of arbitration shall be Mumbai, Maharashtra. The language of arbitration shall be English. The arbitral award shall be final and binding on the Parties.

9.3 Governing Law and Jurisdiction

This Agreement shall be governed by and construed in accordance with the laws of India. Subject to Clause 9.2, the courts at Mumbai, Maharashtra shall have exclusive jurisdiction over all matters arising out of or in connection with this Agreement.

ARTICLE X — GENERAL PROVISIONS

10.1 Entire Agreement

This Agreement, together with all Schedules and Annexures, constitutes the entire agreement between the Parties with respect to the subject matter hereof and supersedes all prior negotiations, representations, warranties, and understandings of the Parties with respect thereto.

10.2 Amendments

No amendment, modification, or supplement to this Agreement shall be valid or binding unless made in writing and duly executed by both Parties.

10.3 Waiver

No failure or delay by either Party in exercising any right or remedy under this Agreement shall constitute a waiver of that right or remedy. No single or partial exercise of any right or remedy shall preclude any other or further exercise thereof.

10.4 Severability

If any provision of this Agreement is held by a court of competent jurisdiction to be invalid, illegal, or unenforceable, such provision shall be modified to the minimum extent necessary to make it valid, legal, and enforceable, and the remaining provisions of this Agreement shall continue in full force and effect.

10.5 Notices

All notices, demands, requests, consents, approvals, and other communications required or permitted under this Agreement shall be in writing and shall be delivered by hand, registered post with acknowledgement due, or by email (with confirmation of receipt) to the addresses set out in Schedule II. Notices shall be deemed received on the date of delivery.

10.6 Force Majeure

Neither Party shall be liable for any delay or failure to perform its obligations under this Agreement to the extent such delay or failure results from events, circumstances, or causes beyond its reasonable control, including acts of God, natural disasters, war, civil unrest, pandemic, or government restrictions, provided that the affected Party gives prompt written notice to the other Party.

10.7 Counterparts

This Agreement may be executed in one or more counterparts, each of which shall be deemed an original and all of which together shall constitute one and the same instrument.

10.8 Stamp Duty on Agreement

This Agreement shall be duly stamped in accordance with the Maharashtra Stamp Act, 1958. The stamp duty on this Agreement shall be borne by the Purchaser.

SCHEDULE I — DESCRIPTION OF THE SAID PROPERTY

ALL THAT piece and parcel of commercial premises being:

Unit Number: 701 (Seventh Floor)

Building Name: Pinnacle Business Park

Plot Number: C-22, MIDC Industrial Area

Location: Andheri (East), Mumbai – 400 093

District: Mumbai Suburban

State: Maharashtra

Carpet Area: 2,840 sq. ft. (approx.)

Built-up Area: 3,512 sq. ft. (approx.)

Super Built-up Area: 4,124 sq. ft. (approx.)

Car Parking: 2 (Two) designated covered car parking spaces in Basement Level B-1, bearing Nos. P-47 and P-48

Survey Number: Survey No. 142/3, Hissa No. 4

CTS Number: CTS No. 847/A of Andheri (East) Division

Title Origin: Registered Sale Deed dated 22.03.2011, Doc No. 4471/2011, SRO Andheri (West)

BOUNDED AS FOLLOWS:

On the North: Lift lobby and common corridor

On the South: External facade and glass curtain wall facing MIDC Road

On the East: Unit No. 702 occupied by M/s. Techspark Solutions Pvt. Ltd.

On the West: Fire escape staircase and emergency exit

SCHEDULE II — NOTICE ADDRESSES

For the Seller:

M/s. Horizon Realty Ventures Private Limited
14-B, Nariman Point, Mumbai – 400 021
Attn: Mr. Rajesh Kumar Mehta, Director
Email: rkmehta@horizonrealty.in
Mobile: +91-98201-XXXXX

For the Purchaser:

Mr. Arjun Pradeep Nair
302, Palm Grove Residency, Linking Road, Bandra (West), Mumbai – 400 050
Email: arjun.nair.mumbai@gmail.com
Mobile: +91-99876-XXXXX

SCHEDULE III — SELLER'S BANK ACCOUNT DETAILS

Account Name: Horizon Realty Ventures Private Limited

Bank Name: HDFC Bank Limited

Branch: Nariman Point Branch, Mumbai

Account Number: XXXXXXXX4821

IFSC Code: HDFC0000167

Account Type: Current Account

MICR Code: 400240019

Note: The Purchaser is advised to verify the above bank account details directly with the Seller before making any transfer. The Seller shall not be responsible for any misdirected payments due to errors in bank details provided verbally or through unofficial channels.

EXECUTION AND ATTESTATION

IN WITNESS WHEREOF, the Parties have executed this Agreement on the day, month, and year first written above, in the presence of the witnesses named below.

SIGNED AND DELIVERED

by the SELLER:

M/s. Horizon Realty Ventures Pvt. Ltd.

Authorised Signatory

Mr. Rajesh Kumar Mehta, Director

Date: _____

Place: Mumbai

SIGNED AND DELIVERED

by the PURCHASER:

Mr. Arjun Pradeep Nair

Signature

Mr. Arjun Pradeep Nair

Date: _____

Place: Mumbai

WITNESSES:

Witness 1:

Name: _____

Address: _____

Signature: _____

Date: _____

Witness 2:

Name: _____

Address: _____

Signature: _____

Date: _____

This document has been prepared for the purpose of a technical assessment and contains fictitious names, addresses, and details. It does not constitute legal advice.